

24SMCV05129 24SMCV05129

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-16

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The court has before it a demurrer by Gilinski to Kenig's

Answer. Here is the court's ruling.

The demurrer is OVERRULED as to the answer itself. Kenig need do no more than admit or deny or state a lack of information and belief as a basis for the denial.

As to the affirmative defenses, the ruling is as follows: 1

AD—SUSTAINED WITHOUT LEAVE TO AMEND because this is not an affirmative defense;

2 AD—SUSTAINED WITHOUT LEAVE TO AMEND because this is not an affirmative

defense; 3 AD—SUSTAINED WITH LEAVE TO AMEND inasmuch that the court really

cannot tell what this defense purports to be; 4 AD—SUSTAINED WITH LEAVE TO

AMEND for the same reason; 5 AD—OVERRULED; 6 AD—OVERRULED; 7 AD—SUSTAINED

WITHOUT LEAVE TO AMEND because this is not an affirmative defense; 8 AD—OVERRULED

inasmuch as to the extent it is derivative, it appears to still be properly

pled; 9 AD—OVERRULED; 10 AD—SUSTAINED WITHOUT LEAVE TO AMEND because this is

not an affirmative defense; 11 AD—OVERRULED; 12 AD—SUSTAINED WITH LEAVE TO

AMEND as the conditions should be specified; 13 AD—OVERRULED; 14 AD—SUSTAINED

WITH LEAVE TO AMEND because there must be more particularity with regard to

this affirmative equitable defense; 15 AD—SUSTAINED WITH LEAVE TO AMEND for the

same reason; 16 AD—OVERRULED; 17 AD—OVERRULED; 18 AD—SUSTAINED WITH LEAVE TO

AMEND because it is not properly pled; 19 AD—SUSTAINED WITHOUT LEAVE TO AMEND

because this is not an affirmative defense; 20 AD—SUSTAINED WITHOUT LEAVE TO

AMEND because this is not an affirmative defense; 21 AD—SUSTAINED WITHOUT LEAVE

TO AMEND because this is not an affirmative defense; 22 AD—SUSTAINED WITH LEAVE

TO AMEND because the rights need to be specified; 23 AD—SUSTAINED WITH LEAVE TO

AMEND to plead the facts giving rise to estoppel in that one cannot plead that there

might be estoppel and discovery will tell the tale; 24 AD—SUSTAINED WITHOUT

LEAVE TO AMEND because this is not an affirmative defense. Defendant has 5 court days to file and serve

an amended answer.